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To be Argued by:
MICHAEL J. DELL, ESQ.
(Time Requested: 15 minutes)

To be argued by:
MICHAEL J. DELL, ESQ.
15 minutes requested

New York County Clerk's Index No. 156916/2021

New York Supreme Court

Appellate Division—First Department

New York Supreme Court

APPELLATE DIVISION—FIRST DEPARTMENT APPELLATE NO.: 2022-03908

NEW YORK COUNTY LAWYERS ASSOCIATION, BRONX COUNTY BAR ASSOCIATION, BROOKLYN BAR ASSOCIATION, QUEENS COUNTY BAR ASSOCIATION, RICHMOND COUNTY BAR ASSOCIATION, ASSIGNED COUNSEL ASSOCIATION OF NEW YORK STATE, INC. (ACA-NYS, INC.), METROPOLITAN BLACK BAR ASSOCIATION, MACON B. ALLEN BLACK BAR ASSOCIATION, LATINO LAWYERS ASSOCIATION OF QUEENS COUNTY, AND ASIAN AMERICAN BAR ASSOCIATION OF NEW YORK,

Plaintiffs-Respondents,

—against—

– against –

THE STATE OF NEW YORK,

Defendant-Respondent,

—and—

– and –

THE CITY OF NEW YORK, NEW YORK CITY DEPARTMENT OF FINANCE, and SHERIF SOLIMAN, in his official capacity as Commissioner of the New York City Department of Finance,

Defendants-Appellants.

BRIEF FOR PLAINTIFFS-RESPONDENTS

BRIEF FOR PLAINTIFFS-RESPONDENTS

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April 19, 2023

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Plaintiffs-Respondents, the bar associations for all five counties of New York City, the Assigned Counsel Association of New York State, Inc., the Metropolitan Black Bar Association, the Macon B. Allen Black Bar Association, the Latino Lawyers Association of Queens County, and the Asian American Bar Association of New York (together, "Respondents"), respectfully submit this brief in opposition to the appeal of Defendants-Appellants the City of New York, New York City Department of Finance, and Sherif Soliman (together, "Appellants") from a portion of the decision and order of the Supreme Court, New York County (Hon. Lisa S. Headley, J.), entered on July 25, 2022 (the "Order"). Appellants appeal from the Order only to the extent it requires them to pay assigned counsel at the rate of $158 per hour during the period from February 2, 2022, when Respondents filed their request for an order that Appellants show cause why that rate should not be paid immediately, to July 25, 2022, when Supreme Court granted the requested preliminary injunctive relief.[1]

PRELIMINARY STATEMENT

The true measure of a society can be found in the manner in which it treats its most vulnerable members. This case is about New York State and New York City's decades-long failure to honor their obligation to safeguard the constitutional

[1] Citations to "R." refer to the Record. (*See* App. Div. Doc. Nos. 4-13). "Br." refers to Appellants' brief on this appeal. (*See* App. Div. Doc. No. 14). "App. Div. Doc. No." refers to this Court's NYSCEF docket. "NYSCEF Doc. No." refers to the trial court's NYSCEF docket.

City's decades-long failure to honor their obligation to safeguard the constitutional rights of children and indigent adults, the most vulnerable members of our society, to meaningful and effective legal representation by assigned private counsel in Family and Criminal Court proceedings in the City. The State and the City failed to ensure that representation by refusing to pay adequate compensation to such counsel.

More than twenty years ago, this Court found in *New York County Lawyers Association v. State* ("*NYCLA I*") that the courts have the authority to determine whether the failure to pay private assigned counsel sufficient compensation to ensure meaningful and effective legal representation of children and indigent adults violates their constitutional rights:

> "[A]s the Court in *Klostermann v. Cuomo* (61 N.Y.2d 525, 531) stated, when the Legislature creates a duty of compensation "it is within the courts' competence to ascertain whether [the State] has satisfied [that] duty . . . and, if it has not, to direct that the [State] proceed forthwith to do so." Even though the Legislature, when creating that duty, also established rates for compensation, the courts must have the authority to examine that legislation to determine whether its monetary cap provisions create or result in the alleged constitutional infirmity (*see Board of Educ., Levittown Union Free School Dist. v. Nyquist*, 57 N.Y.2d 27, 39, *appeal dismissed* 459 U.S. 1138).

294 A.D.2d 69, 72 (1st Dep't 2002).

On May 3, 2002, Supreme Court found there was in fact a "serious and imminent danger of the denial of assistance of counsel to indigent litigants in the New York City family and criminal courts resulting from the inadequate

compensation rates [the defendants] paid to assigned counsel." *NYCLA v. State*, 192 Misc. 2d 424, 425, 436 (Sup. Ct. N.Y. Cty. 2002). The Court issued a mandatory preliminary injunction directing payment of an interim rate of $90 per hour, the rate at which assigned counsel were then paid under the Criminal Justice Act (the "CJA") to represent indigent defendants in New York federal courts, "given the comparable importance" of state and federal proceedings. *Id.* at 436. The Court explained "court administrators have recognized for years that New York's assigned counsel rates undermine both the operation of the courts and the quality of the representation provided to children and indigent adults." *Id.* at 435. "[W]hen legislative appropriations prove insufficient and legislative inaction obstructs the judiciary's ability to function, the judiciary has the inherent authority to bring the deficient state statute into compliance with the constitution by order of a mandatory preliminary injunction." *Id.* at 436.

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The following year, on February 5, 2003, Supreme Court found the State and the City had created a severe and unacceptably high risk that children and indigent adults were receiving inadequate legal representation in the City in violation of the New York and United States Constitutions and granted declaratory relief and a permanent injunction requiring an increase in assigned counsel compensation to the then federal CJA rate of $90 per hour. *NYCLA v. State*, 196 Misc. 2d 761 (Sup. Ct. N.Y. Cty. 2003). The Court also found that Article 18-B, the Family Court Act (the "FCA"), and the Judiciary Law "were enacted without a mechanism for

COUNTERSTATEMENT OF FACTS

A. The Constitutional Right to Assigned Private Counsel in New York

For these reasons, and as more fully explained below, the Court should affirm the challenged portion of the Order to protect the constitutional rights of children and indigent adults.

COUNTERSTATEMENT OF QUESTIONS PRESENTED

Did Supreme Court abuse its discretion in the portion of its preliminary injunction Order that directed Appellants to increase assigned counsel compensation to $158 per hour for the period from the date of Respondents' Motion for "immediate" relief to the date of the Order?

No. The trial court's Order that Appellants increase assigned counsel compensation from the date of Respondents' Motion is correct and should be affirmed.

COUNTERSTATEMENT OF FACTS

A. The Constitutional Right to Assigned Private Counsel in New York

The right of children and indigent adults, the most vulnerable among us, to counsel in Family Court and criminal proceedings has a long tradition in this State. It dates back to President Washington's early words quoted by Supreme Court, and is enshrined in the State's Constitution. But the "perpetual pledge [to] vigilantly guard" these individuals' right of equal access to justice has not been kept. That failure has put children and indigent adults at unreasonable risk of being deprived of their constitutional right to counsel.

> automatic periodic increases in assigned counsel rates, therefore requiring recurrent visitations by this Judicial Body." *Id.* At 762 (emphasis added).
>
> Supreme Court explained in its 2003 order in *NYCLA I*:
>
> "'The true administration of justice is the firmest pillar of good government.' The courts of this state cannot be true to George Washington's conviction when the most vulnerable in our society, children and indigent adults, appear in courts without advocates to champion or defend their causes. The pusillanimous posturing and procrastination of the executive and legislative branches have created the assigned counsel crisis impairing the judiciary's ability to function. This pillar is essential to the stability of our political system. It should therefore be continually strengthened and not allowed to crumble into the detritus of a constitutional imbalance among the branches of government. Equal access to justice should not be a ceremonial platitude, but a perpetual pledge vigilantly guarded."
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The right of children and indigent adults, the most vulnerable among us, to counsel in Family Court and criminal proceedings has a long tradition in this State. It dates back to President Washington's early words quoted by Supreme Court, and is enshrined in the State's Constitution. But the "perpetual pledge [to] vigilantly guard" these individuals' right of equal access to justice has not been kept. That failure has put children and indigent adults at unreasonable risk of being deprived of their constitutional right to counsel.

B. New York's Assigned Counsel System

In 1965, to satisfy New York's long-standing obligation to protect the constitutional right of indigent and vulnerable litigants to effective legal representation, the Legislature adopted Article 18-B. Article 18-B requires local governments to implement systems that provide adequate legal representation for children and indigent adults charged with crimes. The New York State Bar Association report that preceded the original enactment of Article 18-B recommended that "[l]awyers who are assigned to represent indigent [parties] should be compensated sufficiently to permit them to devote the time, care and

designated to represent clients when, for example, representation by an institutional provider such as the Legal Aid Society would present a conflict." Both Judicial Departments in New York City have established panels of assigned counsel from which attorneys are designated to represent children or indigent adults in Family, Criminal, and Supreme Court proceedings, and have created protocols for screening, certifying, and impaneling assigned counsel.

In 1965, County Law 722-b set the compensation rates for assigned counsel at $15 per hour for in-court and $10 per hour for out-of-court time, with caps of $500 and $300. Those rates were increased twice over the next twenty years, the last time in 1986. As of 2001, Appellants compensated assigned counsel at the 1986 rates: $25 per hour for out-of-court and $40 per hour for in-court work, with a cap of $800 for misdemeanor and Family Court cases and $1,200 for felonies and appellate matters.

In contrast, assigned private counsel in New York's federal courts received $75 per hour for time spent in and outside court. By 2003, their compensation had increased to $90 per hour.

D. This Lawsuit and Appellants' Delays

In 2021, NYCLA sued the State and the City once again, and the other Respondents joined as plaintiffs, to protect the constitutional right of children and indigent adults to meaningful and effective legal representation by assigned private counsel in Family and Criminal Court proceedings in the City ("*NYCLA II*").

patience to the preparation and disposition of the cases which are necessary to meaningful exercise of the right to counsel." Comm. on State Legis., NYSBA Report No. 48, at 2 (1965).

C. Supreme Court's 2003 Ruling That Inadequate Compensation for Assigned Counsel Creates an Unacceptably High Risk of Ineffective Representation and Violates the New York and United States Constitutions

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Respondents filed a Complaint on July 26, 2021 and an Amended Complaint on September 30, 2021.

On July 25, 2022, Supreme Court granted the preliminary injunction requiring the State and Appellants to increase assigned counsel compensation in the City to $158 per hour, the CJA rate then paid to assigned counsel in New York federal courts, from February 2, 2022. (R. 10). The Court found "that severe and irreparable harm to children and indigent adult litigants would occur without an injunction" and the violation of their constitutional rights is of "paramount importance." (R. 9). The Court also directed that, "[t]o avoid being in this position again," the State must "revisit and consider an increase in salary for assigned counsel, who represent children and indigent adults in Family Court, Criminal Court and other court proceedings in New York City, at the same rate and at the same time the federal assigned counsel receive an increase in compensation." (R. 10).

Respondents now appeal the portion of the Order that granted relief from the date of the Motion through the date of the Order.

ARGUMENT

The standard for this Court's review of the challenged portion of Supreme Court's Order is abuse of discretion. "The decision to grant or deny provisional relief, which requires the court to weigh a variety of factors, is a matter ordinarily committed to the sound discretion of the lower courts. Our power to review such decisions is thus limited to determining whether the lower courts' discretionary

decisions is thus limited to determining whether the lower courts' discretionary powers were exceeded or, as a matter of law, abused." *Nobu Next Door, LLC v. Fine Arts Hous., Inc.*, 4 N.Y.3d 839, 840 (2005); *see also Doe v. Dinkins*, 192 A.D.2d 270, 271 (1st Dep't 1993) ("It was not an abuse of discretion to grant the plaintiffs' motion for a preliminary injunction"); *Indosuez Int'l Fin., B.V. v. Nat'l Rsrv. Bank*, 304 A.D.2d 429, 430 (1st Dep't 2003) ("It was not an abuse of discretion to grant, sua sponte, a preliminary injunction pending a determination on the parties' summary judgment motions.").

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I. THE CHALLEGED PORTION OF THE ORDER SHOULD BE AFFIRMED BECAUSE APPELLANTS FAILED TO PRESERVE THEIR ARGUMENT FOR APPEAL

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Appellants' only challenge to the Order is that it should not apply to the period between February 2, 2022, when Respondents filed their motion, and the date of the Order. That argument should be rejected because Appellants failed to preserve it for appeal.

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Respondents expressly and repeatedly requested in their motion for a preliminary injunction that the State and Appellants be required "immediately to compensate assigned counsel at the rate paid to assigned counsel in New York's Federal Courts." (*See, e.g.*, R. 1046; *see also* R. 1025 (the "compensation rate for such counsel should be increased immediately"), R. 1027 (the "balance of the equities plainly favors an immediate increase"); NYSCEF Doc. No. 126 at 1 (asking Supreme Court to order the defendants to provide that relief

Respondents expressly and repeatedly requested in their motion for a preliminary injunction that the State and Appellants be required "immediately to compensate assigned counsel at the rate paid to assigned counsel in New York's Federal Courts." (*See, e.g.*, R. 1046; *see also* R. 1025 (the "compensation rate for such counsel should be increased immediately"), R. 1027 (the "balance of the equities plainly favors an immediate increase"); NYSCEF Doc. No. 126 at 1 (asking Supreme Court to order the defendants to provide that relief

"immediately")). Immediate means "[o]ccurring without delay; instant." Black's Law Dictionary 897 (11th ed. 2019). Thus, Appellants' contention that Respondents did not make this request (Br. 12) is simply incorrect. Moreover, Supreme Court's Order to Show Cause directed Appellants to show cause "why an order should not be entered requiring Defendants immediately to compensate assigned counsel at the rate paid to assigned counsel in New York's federal courts", and "awarding such other and further relief as is just and proper." (R. 13 (emphasis added)).

In the trial court, while Appellants opposed Respondents' motion, they did not object to the relief being "immediate," if awarded. Accordingly, they cannot object to it "now at the appellate level for the first time." *Murray v. City of New York*, 195 A.D.2d 379, 381 (1st Dep't 1993); *see also McGovern v. Mount Pleasant Cent. Sch. Dist.*, 25 N.Y.3d 1051, 1053 (2015) (arguments on appeal were not preserved for appellate review because the appellant "did not raise them at Supreme Court"); *Lopez v. City of New York*, 192 A.D.3d 634, 639 (1st Dep't 2021) ("the argument was not raised below and so is unpreserved"); *Pirraglia v. CCC Realty NY Corp.*, 35 A.D.3d 234, 235 (1st Dep't 2006) (rejecting argument because it was "improperly raised for the first time on appeal, and thus not preserved for review").

II. THE CHALLENGED RELIEF WAS AN APPROPRIATE EXERCISE OF SUPREME COURT'S DISCRETION AND SHOULD BE AFFIRMED

A. The Challenged Portion of the Order Was an Essential Aspect of the Relief

The courts "clearly ha[ve] the power and should render such relief as is appropriate to the wrongs of the defendant," and "may properly shape [their] decree[s] in accordance with the equities of the case" because "[t]he power of equity is as broad as equity and justice require." *Kaminsky v. Kahn*, 23 A.D.2d 231, 237 (1st Dep't 1965).

Here the challenged portion of the Order is an important aspect of the relief requested. It is in accordance with the requirements of equity and justice. And it is appropriate to the wrongs of the State and Appellants, including their failure to protect the right of children and indigent adults to the meaningful and effective assistance of counsel in New York City's Family and Criminal Courts for decades and to heed Supreme Court's admonition in 2003 for "recurrent visitation" of assigned counsel rates.

B. The Challenged Portion of the Order is Not "Retroactive Backpay" and is in Any Event Appropriate

The overwhelming and undisputed evidence presented by Respondents, much of it acknowledged by Appellants (Br. 7, 10-11), including the statements and testimony of numerous judges, retired judges, experts, assigned counsel, and others, shows the State and Appellants' decades-long failure to protect the constitutional right to assigned counsel by providing adequate compensation

and it was entirely within Supreme Court's discretion to award it, as explained above.

In any event, Appellants' cases do not support their argument that Supreme Court should not have awarded relief to address a constitutional claim of irreparable injury for the period between the date Respondents filed their request for an order to show cause and the date Supreme Court decided the motion. (Br. 15-17).[2] The cases Appellants cite to support their contention that a preliminary injunction cannot award compensatory relief are also inapposite because here, the increased compensation is the means to protect the constitutional rights of children and indigent litigants and prevent irreparable injury to them, not to enrich the attorneys themselves. As Appellants acknowledge, Respondents "do not . . . argue that they have a right to increased compensation independent from the constitutional and statutory rights to counsel of their members' clients." (Br. 18).

In any event, Appellants' cases do not support their argument that Supreme Court should not have awarded relief to address a constitutional claim of irreparable injury for the period between the date Respondents filed their request for an order to show cause and the date Supreme Court decided the motion. (Br. 15-17).[3] The cases Appellants cite to support their contention that a preliminary

[2] For example, Appellants cite *Purvi Enterprises, LLC v. City of New York*, 62 A.D.3d 508, 509 (1st Dep't 2009), for the proposition that injunctive relief should not be directed toward "past conduct." (Br. 16). But the injunction sought there was to cure an earlier breach of the parties' zoning agreement, not an ongoing constitutional crisis for which the Supreme Court granted relief designed to prevent future irreparable harm.

[3] For example, Appellants cite *Purvi Enterprises, LLC v. City of New York*, 62 A.D.3d 508, 509 (1st Dep't 2009), for the proposition that injunctive relief should not be directed toward "past conduct." (Br. 16). But the injunction sought there was to cure an earlier breach of the parties' zoning agreement, not an ongoing

I simply cannot afford to remain on this Panel without a wage increase.")).

Appellants themselves concede "the number of attorneys participating in the 18-b Program has decreased, which practitioners as well as current and former Family and Criminal Court judges have attributed to the low rates of compensation." (Br. 7).

B. The Challenged Portion of the Order is Not "Retroactive Backpay" and is in Any Event Appropriate

Appellants mischaracterize the challenged portion of the Order as "retroactive backpay" that is "wholly unrelated to the right to counsel that the Supreme Court's injunction was intended to protect." (Br. 2, 15). That is incorrect, and it was entirely within Supreme Court's discretion to award it, as explained above.

C. Appellants Waived Their Standing Argument, and in Any Event Respondents Have Associational Standing as to the Challenged Portion of the Order

Appellants waived their argument that Respondents do not have standing to seek relief for the period from the filing of their motion to the date Supreme Court 15-17).[3] The cases Appellants cite to support their contention that a preliminary

issued its decision by failing to raise it in their answer (R. 1115) or a pre-answer motion to dismiss. *See* CPLR 3211(e); *US Bank Nat'l Ass'n v. Nelson*, 36 N.Y.3d 998, 999 (2020) ("Defendants failed to raise standing in their answers or in pre-answer motions as required by CPLR 3211(e) and accordingly . . . the defense was waived."). Appellants also failed to argue lack of standing in opposition to Respondents' motion for a preliminary injunction. As explained above, that means their standing argument was not preserved for this appeal. *See McGovern*, 25 N.Y.3d at 1053; *Pirraglia*, 35 A.D.3d at 235.

waived."); *CUCS HDFC v. Haymes*, 191 A.D.3d 522, 523 (1st Dep't 2021) ("Petitioners waived any defense that respondent lacks standing . . . by failing either to raise such affirmative defenses in their reply to the counterclaim or to move to dismiss the counterclaim on those grounds"). Appellants also failed to argue lack of standing in opposition to Respondents' motion for a preliminary injunction. As explained above, that means their standing argument was not preserved for this appeal. *See McGovern*, 25 N.Y.3d at 1053; *Pirraglia*, 35 A.D.3d at 235.

Beyond that, this Court's decision in *NYCLA I* shows there is no merit to Appellants' contention that Respondents lack standing to assert a claim on behalf of children and indigent litigants for relief that starts on the date Respondents filed their motion, rather than on the date the Court grants the relief. (Br. 21-26). This Court found a "'substantial relationship' between those whose rights are threatened and [NYCLA]" because the "organization and its panel attorney members have an inherent interest in providing effective representation for, and protecting the rights of, their present and prospective clients." 294 A.D.2d 69, 75-76 (1st Dep't 2002). That remains true of NYCLA today, and that interest is shared by the other Respondents. (*See* R. 978-80).

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This Court also found in *NYCLA I* that it was "readily apparent that the clients themselves are not in a position to protect their own rights," 294 A.D.2d at 76, and that is still true today. And this Court found a

CONCLUSION

The challenged portion of the Order should be affirmed.

Dated: April 19, 2023

New York, New York

Dated: New York, New York
April 19, 2023

Respectfully submitted,

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Dated: New York, New York
April 19, 2023



Michael J. Dell

United States Supreme Court ruled that when a child faces a loss of liberty, he or she is constitutionally entitled to meaningful and effective assistance of counsel. *See In re Gault*, 387 U.S. 1 (1967). Five years earlier, in 1962, New York adopted the FCA. That placed this State at the forefront of the protection of children's rights. The FCA provides that each child who is the subject of a Family Court proceeding, or an appeal of a proceeding originating in Family Court, is entitled to representation by counsel of his or her choice or by an attorney for the child appointed by the State. *See* FCA § 241.

New York courts have held that indigent children who press claims in Family Court that implicate their liberty interest, such as allegations of child abuse, are also entitled to meaningful and effective legal representation by assigned counsel. *See Silverman v. Silverman*, 186 A.D.3d 123, 129 (2d Dep't 2020); *In re Payne v. Montano*, 166 A.D.3d 1342, 1345 (3d Dep't 2018); *In re Brian S.*, 141 A.D.3d 1145, 1147 (4th Dep't 2016); *In re Jamie TT*, 191 A.D.2d 132 (3d Dep't 1993).

Federal and New York law also require that indigent adults have meaningful and effective legal representation in other family proceedings. For example, the United States Supreme Court has held that an indigent adult has a right to meaningful and effective legal representation in child custody proceedings. *See Lassiter v. Dep't of Soc. Servs. of Durham Cty. N.C.*, 452 U.S. 18 (1981). And the

AFFIDAVIT OF SERVICE

STATE OF NEW YORK)
) ss.:
COUNTY OF)

being duly sworn, deposes and says:

deponent is not a party to this action, is over 18 years of age, and resides at _____.

On the _____ day of _____, 20____, deponent served the within brief upon each attorney for each party to this appeal, at the address designated by that attorney for that purpose, by _____, and by _____.

_____
Sworn to before me this
_____ day of _____, 20____
Notary Public